

2:00 PM

LINE: 2

23-CIV-03335

WILLIAM ROGERS, ET AL VS. TRANSITAMERICA SERVICES, INC., ET AL

WILLIAM ROGERS
TRANSITAMERICA SERVICES, INC.

ANDREW P MCDEVITT
STEPHANIE L QUINN

DEFENDANTS PENINSULA CORRIDOR JOINT POWERS BOARD, TRANSITAMERICA SERVICES, INC. and HERZOG TRANSIT SERVICES, INC.’S MOTION TO COMPEL COMPLIANCE WITH SUBPOENA BY NON-PARTY STACY WITBECK, INC.

TENTATIVE RULING:

Defendant Peninsula Corridor Joint Powers Board’s unopposed motion for an order compelling non-party Stacy Witbeck Inc. (“SWI”), to produce responsive documents pursuant to deposition subpoena for production of records in response to Nos. 1 through 13 is **GRANTED**.

Defendant is reminded that exhibits **MUST** be properly bookmarked: it is not the Court’s onus to parse through a declaration over one hundred fifty pages in length to find exhibits cited therein. “[E]lectronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” (Cal. Rules of Court, rule 3.1110(f)(4); see also San Mateo County Superior Court, L.R. 3.3 [“Failure to bookmark exhibits to electronically filed documents may result in rejection of the party’s e-filing by the Clerk of the Court or in continuance of the hearing by the Court on the related motion.”].)

BACKGROUND

This is an injury accident and negligence action brought by Plaintiff William Rogers and his wife Sarah Rogers against Defendants PCJPB, Transitamerica Services Inc. (“TASI”), and Herzog Transit Services, Inc. after Plaintiff William Rogers, an employee of Modern Railway Systems (“MRS”), was injured on Caltrain property.

Caltrain had contracted with Balfour Beatty Infrastructure (“BBI”) to modernize the Caltrain passenger rail service by converting from diesel powered locomotives to electrical power. As part of the Caltrain Electrification Project (hereinafter referred to as the “Project”), BBI subcontracted with MRS to perform signalization work. MRS is a subsidiary of SWI and SWI also provided services along with MRS as part of the Project.

The injury-accident occurred on August 25, 2022, when Plaintiff William Rogers was working on Caltrain’s property and fell through timber planking on the Oregon Expressway Bridge onto the Oregon Expressway below. The underlying lawsuit followed on July 20, 2023, and is set for trial on November 20, 2026. A cross-complaint was also filed.

The instant motion seeks to compel non-party SWI to produce responsive documents pursuant to the second deposition subpoena served on October 21, 2025, for production of records served on in response to Nos. 1

through 13 pursuant to Code of Civil Procedure sections 1987.1, 2025.280, 2025.480, 2025.450. (Declaration of Pearl M. Walker iso Motion to Compel Compliance with Subpoena, filed January 5, 2026, ¶ 8, Ex. 5.) SWI served its objections to the second subpoena on November 5, 2025. (Walker Decl. ¶ 9 Ex. 6.) This motion was filed on Monday, January 5, 2026.

On July 9, 2026, defendant filed a notice of non-opposition to the instant motion.

On July 13, 2026, SWI filed a motion for relief pursuant to Code of Civil Procedure section 473 requesting that the Court allow Stacy Witbeck to argue its points in that opposition at the instant hearing date, July 16, 2026, because the opposition brief was not filed due to counsel's calendaring mistake. This motion is not properly before the Court and the Court declines to rule on the merits of the motion to vacate.

LEGAL STANDARD

"[T]he discovery statutes vest a wide discretion on the trial court in granting or denying discovery." (*Greyhound Corp. v. Superior Court In and For Merced County* (1961) 56 Cal.2d 355, 378 [superseded by statute].) " 'The standard of review generally applicable to review of discovery orders is abuse of discretion, as management of discovery lies within the sound discretion of the trial court. [Citations.]' [Citation.]" (*Haniff v. Superior Court* (2017) 9 Cal.App.5th 191, 198.)" (*Manuel v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 719, 727.)

Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.

(Code Civ. Proc., § 2017.010.)

In California, discovery may be obtained from a nonparty through an oral deposition, a written deposition, or a deposition for the production of business records and things. (Code Civ. Proc., § 2020.010, subd. (a).) To pursue the deposition of a nonparty, a party must generally serve a deposition subpoena. (*Id.*, § 2020.010, subd. (b).) "A deposition subpoena that commands only the production of business records for copying shall designate the business records to be produced either by specifically describing each individual item or by reasonably particularizing each category of item, and shall specify the form in which any electronically stored information is to be produced, if a particular form is desired." (*Id.*, § 2020.410, subd. (a).)

(*Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011, 1030.)

"[A] party seeking to compel production of records from a nonparty must articulate specific facts justifying the discovery sought; it may not rely on mere generalities. (*Calcor*, at p. 224, 61 Cal.Rptr.2d 567.) In assessing the

party's proffered justification, courts must keep in mind the more limited scope of discovery available from nonparties. (See *Catholic Mutual Relief Society v. Superior Court* (2007) 42 Cal.4th 358, 366, fn. 6, 64 Cal.Rptr.3d 434, 165 P.3d 154." (*Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011, 1039 (*Board*).)

DISCUSSION

Initially, the Court notes the instant motion is timely because the statutory 60th day fell on Sunday, January 4, 2026. Therefore, the instant motion's filing date of January 5, 2026 was timely. (Code Civ. Proc. § 2025.480, subd. (b); *Board, supra*, 59 Cal.App.5th at 1031.)

Defendant PCJPB' brings this motion on the basis that SWI has information that may be probative of issues of liability, comparative fault, as well as the facts and circumstances that lead to Plaintiff William Rogers' injuries because this discovery is relevant to the subject matter involved in the pending action. Specifically, the request seeks all documents evidencing, reflecting or referring to safety conditions, inspection findings, maintenance assessments, or any actual and/or potential safety hazards relating to Oregon Expressway Bridge during the period of August 1, 2022, to August 31, 2022. Defendant contends their original request has been substantially narrowed, limiting timeframe and the scope of the information sought. Even though an opposition was not timely presented, the Court addresses the merits of the request below as set forth in Defendant's separate statement of responses filed in support of this motion.

REQUEST NO. 1: ALL DOCUMENTS, communications, and records in any form evidencing, reflecting or referring to the performance of any work, maintenance, or repair activities by Stacy Witbeck Inc., at or about BRIDGE, during the period of August 1, 2022, to August 31, 2022.

RESPONSE TO TOPIC NO. 1: SW objects to this request as improper, harassing, overly broad and impermissible under California law as well as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS (a subsidiary of SWI.) SW further objects to this request to the extent it seeks documents protected by the attorney-client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 2: ALL DOCUMENTS, communications, and records in any form evidencing, reflecting or referring to safety conditions, inspection findings, maintenance assessments, or any actual and/or potential safety hazards relating to BRIDGE during the period of August 1, 2022, to August 31, 2022.

RESPONSE TO TOPIC NO. 2: SW objects to this request as improper, harassing, overly broad and impermissible under California law as well as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS (a subsidiary of SWI.) SW further objects to this request to the extent it seeks documents protected by the attorney-client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 3: ALL DOCUMENTS, communications, and records in any form evidencing, reflecting or referring to the existence, report, discovery, or repair of any open hole or hazardous opening on the BRIDGE from August 01, 2022, till August 31, 2022.

RESPONSE TO TOPIC NO. 3: SW objects to this request as improper, harassing, overly broad and impermissible under California law as well as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS (a subsidiary of SWI.) SW further objects to this request to the extent it seeks documents protected by the attorney-client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 4: All photographs, reports, or communications from August 1, 2022 to August 31, 2022 relating to any open hole on the BRIDGE, including those showing knowledge of the hole, safety measures taken, or changes to signage, markings, or warnings.

RESPONSE TO TOPIC NO. 4: SW objects to this request as improper, harassing, overly broad and impermissible under California law, and as well as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS. SW further objects to the phrases "knowledge of the hole," "safety measures taken," and "changes to signage, markings, or warnings" on the basis that they are all vague, ambiguous, and unintelligible, including but not limited to because it is unclear what the subject of the phrases is (i.e., whose or what's knowledge, who or what took the safety measures, who or what made the changes at issue in the request). The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 5: Any correspondence, including emails, letters, text messages, or other written communications, between employees, contractors, or third parties regarding any work performed in or around the BRIDGE from August 01, 2022, till August 31, 2022.

RESPONSE TO TOPIC NO. 5: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS, MRS's prior productions, and the information otherwise available to the Defendants. SW further objects to this request to the extent it seeks documents protected by the attorney client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 6: Any safety inspection reports, audits or evaluations conducted in relation to the BRIDGE, particularly any references to hazardous conditions, safety violations, or corrective actions taken from August 01, 2022, till August 31, 2022.

RESPONSE TO TOPIC NO. 6: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably

cumulative in light of Defendants' prior subpoenas to MRS, MRS's prior productions, and the information otherwise available to the Defendants. SW further objects to this request to the extent it seeks documents protected by the attorney client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 7: All records, including incident reports and complaints, that document any injuries, close calls, or safety issues related to the BRIDGE between August 1, 2022, and August 31, 2022.

RESPONSE TO TOPIC NO. 7: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS, MRS's prior productions, and the information otherwise available to the Defendants. SW further objects to this request to the extent it seeks documents protected by the attorney client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 8: Any photographs or videos depicting work performed on or near the BRIDGE from August 1, 2022, through August 31, 2022, including but not limited to images documenting project progress, inspections, or safety measures in effect during that period.

RESPONSE TO TOPIC NO. 8: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS, MRS's prior productions, and the information otherwise available to the Defendants. SW further objects to this request to the extent it seeks documents protected by the attorney client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence.

RULING: GRANTED. The request is reasonably tailored and seeks photographs and videos relevant to the issues in dispute. The subpoena is appropriately limited to materials in SWI's possession depicting work performed by SWI at or near the Bridge during the relevant time period.

REQUEST NO. 9: Any maps, plans, diagrams, blueprints, engineering drawings or other technical DOCUMENTS evidencing, depicting, or referring to any work completed or planned by Stacy Witbeck, Inc. at or about the BRIDGE during the period of August 1, 2022, to August 31, 2022.

RESPONSE TO TOPIC NO. 9: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS and for seeking privileged documents and information that is neither admissible nor reasonably calculated to lead to discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 10: Any DOCUMENTS, including meeting minutes, notes, agendas, or summaries referring to or reflecting any safety meetings and/or project-related discussions in which Stacy Witbeck discussed the BRIDGE between August 1, 2022, and August 31, 2022.

RESPONSE TO TOPIC NO. 10: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS and for seeking privileged documents and information that is neither admissible nor reasonably calculated to lead to discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 11: Any DOCUMENTS, communications and records in any form evidencing, reflecting, or referring to any complaints, reports, or notices made by Stacy Witbeck's employees, or third parties regarding actual or potential unsafe conditions at or near the BRIDGE during the period of August 1, 2022, to August 31, 2022.

RESPONSE TO TOPIC NO. 11: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS and for seeking privileged documents and information that is neither admissible nor reasonably calculated to lead to discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 12: All DOCUMENTS, including but not limited to maintenance logs, repair records, work orders, inspection reports, and internal communications, concerning any maintenance or repair activity related to the BRIDGE from August 1, 2022 through August 31, 2022, specifically including any references to the existence of an open hole, any work performed to address or remedy such condition, and any removal, modification, or placement of warnings, signage, or safety markings related thereto.

RESPONSE TO TOPIC NO. 12: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS and for seeking privileged documents and information that is neither admissible nor reasonably calculated to lead to discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 13: All DOCUMENTS including but not limited to work orders, maintenance and repair records, inspection reports, photographs, videos, correspondence, and internal communications, relating to any work performed on or involving the signal equipment known as an AFTAC box and/or any associated junction box located on the north side of the BRIDGE near the Caltrain California Avenue Station, regardless of whether such work was planned, in progress, or completed.

RESPONSE TO TOPIC NO. 13: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably

cumulative in light of Defendants' prior subpoenas to MRS and for seeking privileged documents and information that is neither admissible nor reasonably calculated to lead to discovery of admissible evidence. **RULING: GRANTED.** The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED.**

Any party who contests a tentative ruling must email Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests. The Court reminds parties argument will not be heard on the set hearing date. Parties will be notified of the date set for any argument if the motion is contested.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM

LINE: 3

23-CIV-05077

DAWN CALVERT VS. NEWELL'S COCKTAIL LOUNGE

DAWN CALVERT
NEWELL'S COCKTAIL LOUNGE

PRO SE
WILLIAM S. KRONENBERG

PLAINTIFF DAWN CALVERT'S MOTION QUASH OR, IN THE ALTERNATIVE, TO MODIFY DEFENDANT'S SUBPOENAS FOR PRODUCTION OF RECORDS

TENTATIVE RULING:

Plaintiff's motion to quash was filed on January 9, 2026. At the time of filing, plaintiff did not provide proof that the moving papers were served on defendant. On February 10, 2026, plaintiff filed a proof of service indicating that documents were served on counsel for defendant by mail on January 10, 2026. However, the documents served were not identified. To date, plaintiff has not provided proof that the moving papers were on defendant.

However, on July 7, 2026, defendant filed and served opposition to the motion. Code of Civil Procedure section 1005 requires any opposition to be filed and served nine court days before the hearing date. Defendant's opposition was filed and served 7 court days before the hearing.

The court also notes that it was served on plaintiff electronically. Code of Civil Procedure section 1010.6, subdivision (c)(1) provides that an unrepresented party may consent to receive electronic service by serving notice on all parties and filing the notice with the court or by manifesting consent through electronic means with the court or the court's electronic filing service provider. Defendant has not established that plaintiff consented to electronic service.

The court will exercise its discretion to consider the untimely opposition. However, the motion is continued to August 13, 2026, to give plaintiff time to file a reply brief. No later than nine court days prior to the continued hearing date, defendant shall serve its opposition on plaintiff by overnight mail.

Any party who contests a tentative ruling must email Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests. The Court reminds parties argument will not be heard on the set hearing date. Parties will be notified of the date set for any argument if the motion is contested.